

# Kripashankar vs Smt. Deepshikha on 15 June, 2023

**Author: Sushrut Arvind Dharmadhikari**

**Bench: Sushrut Arvind Dharmadhikari, Hirdesh**

IN THE HIGH COURT OF MADHYA PRADESH  
AT INDORE

BEFORE  
HON'BLE SHRI JUSTICE SUSHRUT ARVIND DHARMADHIKARI  
&  
HON'BLE SHRI JUSTICE HIRDESH  
ON THE 15th OF JUNE, 2023

FIRST APPEAL No. 898 of 2012

BETWEEN: -

KRIPASHANKAR S/O CHETRAMJI PATEL,  
AGED ABOUT 35 YEARS, OCCUPATION: GOVT. SERVICE,  
R/O GRAM AND POST SONKHEDI,  
TEH. CHHANERA (NEW HARSUD)  
DISTT. KHANDWA (MADHYA PRADESH)  
PRESENTLY RESIDING AT 103, ANGAN APARTMENT  
52, SNEHLATAGANJ, INDORE.

(SHRI A.K.SETHI, LEARNED SENIOR ADVOCATE ASSISTED BY  
SHRI HARISH JOSHI, ADVOCATE)

AND

SMT. DEEPSHIKHA W/O KRIPASHANKAR PATEL,  
AGED ABOUT 26 YEARS, OCCUPATION: HOUSEWIFE  
R/O NAI NAGRI MANDAL BHILWADA,  
RAJASTHAN (MADHYA PRADESH)

(SHRI R.C.SONI, ADVOCATE FOR THE RESPONDENT)

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This appeal coming on for final hearing this day, JUS  
SUSHRUT ARVIND DHARMADHIKARI passed the following:

Signature Not Verified

Signed by: SREEVIDYA  
Signing time: 6/16/2023  
5:39:23 PM

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## JUDGMENT

This first appeal under Section 19 of the Family Courts Act, 1984 read with Section 28 of the Hindu Marriage Act, 1955 has been filed by the appellant/husband being aggrieved by the judgment and decree dated 12.10.2012 in H.M.P. Case No. 800/2010 by the Principal Judge, Family Court, Indore dismissing the petition filed under Section 13(1) of the Hindu Marriage Act for dissolution of marriage.

2. The present case is taken up for hearing after exploring the possibility of settlement as directed by this Court on 10.01.2013. Earlier, the mediation took place in the year 2013 but the same failed. The parties appeared in an in-camera proceeding to explore the possibility of settlement. Both the parties agreed to submit the proposal of permanent alimony within a period of one week. Thereafter, both the parties submitted their proposals, however, looking to the difference in proposals to a large extent, settlement could not be arrived at. Hence, this case is taken up for final hearing.

3. The brief facts of the case are that the marriage between the appellant (husband) and respondent (wife) was solemnized on 04.05.2006 at village Nimgaon, District Harda according to Hindu customs and rituals. From the wedlock, one daughter Ku. Parishvi was born on 11.01.2007 who is presently residing with her mother (respondent). The appellant is an International Wrestler and has represented India in several international events. He is recipient of Arjun Award and Vikram Award. In the year 1994, he participated in the Commonwealth Games in Canada and secured Bronze medal. At present, appellant is an employee of the Indian Railways. After marriage, the appellant and the respondent resided at Indore. Respondent did not show any interest in the daily household chores. Respondent often used to leave the house without informing or taking permission from the appellant. Because of the indifferent attitude shown by the respondent, appellant could not attend his duties on time and spent precious time searching for the respondent in the entire city of Indore. The respondent and her parents used to create undue pressure on the appellant to get himself transferred from Indore to Bhilwara and quit wrestling. Thereafter, the respondent is residing with her parents from 22.02.2009. In spite of repeated request, the respondent refused to return to her matrimonial home. On 07.01.2010, the appellant sent a notice to the respondent through his counsel for restitution of conjugal rights. Thereafter, application filed by the appellant under Section 9 of the Hindu Marriage Act was decided ex-parte vide order dated 13.05.2010 in favour of the appellant. However, despite the aforesaid, the respondent again refused to return to her matrimonial home and threatened to file false case of dowry against the appellant. In absence of any other alternative, the appellant filed an application under Section 13(1)(A) of the Hindu Marriage Act seeking a decree of divorce on the ground of cruelty and desertion. Thereafter, respondent lodged an FIR against the appellant and his family members under Section 498(A) and 406 of the Indian Penal Code.

4. The learned trial Court rejected the divorce petition on the ground that no proceedings were initiated by the appellant in compliance of order under Section 9 of the Hindu Marriage Act. No cruelty was proved. The respondent was willing to go with the appellant along with legal protection.

5. Learned Senior counsel appearing for the appellant/husband submitted that the Court below committed grave error in not considering the oral and documentary evidence which establish the ground of cruelty. Moreover, the respondent did not file any application for setting aside the judgment and decree for restitution of conjugal rights. The learned trial Court failed to consider the fact that asking the appellant to quit wrestling and get a transfer to Bhilwara also amounts to cruelty. The respondent filed many applications against the appellant under various provisions of law which goes to show that the main intent of the respondent was to harass the appellant under any circumstance. The appellant and respondent are living separately since 22.02.2009 without any reason.

6. On the basis of the pleadings of the respective parties, the trial Court framed five issues. Appellant, respondent, Umesh Patel-brother of the appellant, Durgesh Vishnoi-father of the respondent and independent witness Anand Pathak were examined by the trial Court. After evaluating the evidence, learned Judge held that the appellant/husband failed to establish that any cruelty was meted out by the respondent/wife and dismissed the application.

7. Per contra, learned counsel appearing for the respondent/wife has supported the judgment and decree and denied all the grounds raised by in the appeal. It is also contended that the trial Court has taken note of all the facts of the case and evidence on record and then rejected the application for divorce.

8. Heard learned counsel for the parties. Perused the record.

9. The main question that arises for consideration firstly is whether the grounds raised by the appellant in the present appeal amounts to cruelty? Secondly, the fact that the appellant and respondent are living separately for more than 14 years, would amount to desertion?

10. It is an admitted position that the marriage between the appellant/husband and the respondent/wife was solemnized on 04.05.2006 and thereafter, a daughter namely Ku. Parishvi was born on 11.01.2007. Thereafter, since 22.02.2009, the respondent and her daughter are living separately from the appellant. The act of the respondent in asking the appellant to quit wrestling and take transfer to Bhilwara, Rajasthan and further refusing to enter into conjugal relationship, amounts to cruelty. Admittedly, both the parties are living separately for the last 14 years. Every possibility of settlement was explored, even the mediation failed. In such a situation, the appeal filed by the needs to be allowed.

11. It is a settled legal position that physical violence is not essential to constitute cruelty. The conduct and behavior of one spouse towards the other also constitute cruelty, the kind of attitude, conduct, treatment, behaviour, either party has every reason to apprehend that it does not save him/her to continue in the marital relationship.

12. The Apex Court in case of K.Srinivas Vs. Sunita (2014) 16 SCC 34 has held that making a false complaint about initiating a false criminal prosecution by one spouse to other constitute mental cruelty. Filing a false complainant against the husband and his family members under Section 498-A of I.P.C. and 307 of I.P.C. will amount to cruelty as defined under section 13 (1) (i-a) of the Hindu Marriage Act. The same view has earlier has been held in the case of Naveen Kohli Vs. Neetu Kohli (2006) 4 SCC 558. In another case of Dr. (Mrs.) Malathi Ravi, M.D. Vrs. Dr. B. V. Ravi, M.D., AIR 2014 SC 2881, it is held that subsequent events established from controverted material on record can be taken into consideration in case of seeking dissolution of marriage. In the case of A.Jayachandra vs Aneel Kaur AIR 2005 SC 534, the Apex Court has held that the act subsequent to the filing of the divorce petition can be taken into consideration to grant the decree of divorce.

13. Even otherwise the appellant/husband and respondent/wife are living separately since 22.02.2009. Recently, the Apex Court in the case of Poonam Vs. Surendra Kumar in civil appeal no.9545/2010 dated 29.09.2021 has granted the decree of divorce in the exercise of power under Article 142 of the Constitution of India mainly on the ground that parties have not been able to sub-serve the very object of the marriage of companionship of each other from the very inception and have been living apart from more than 19 years. In another case Samir Gosh Vs. Jaya Gosh reported in the year 2007 (4) SCC 511 in para 101 the Apex Court has enumerated some instances of human behaviour which may be relevant in dealing with the case of mental cruelty and a long period of continuous separation conclude that the matrimonial bond is beyond repair and marriage becomes fixation only supported by a legal tie.

14. The Apex Court in the case of K. Srinivas Rao Vs. D.A. Deepa reported in AIR 2013 SCC 2176 has held in para-20 that:

"20. According to the appellant-husband on 6/12/2009 the brother of the respondent-wife came to their house and attacked his mother. His mother filed a complaint and the police registered a complaint under Section 354 of the IPC. The brother of the respondent-wife also lodged a complaint and an offence came to be registered. Both the cases are pending."

15. The Division Bench of this Court in case of Dinesh Nagda Vs. Shantibai reported in First Appeal No.272/2006 decided on 20.10.2011 which is reported in AIR 2012 has granted the decree of divorce in case of irretrievable breakdown of marriage and granted decree of divorce on the ground under section 13(1)(B) of the Hindu Marriage Act. The para 20 of the judgment is reproduced below:-

"20. So far as the issue of desertion is concerned, Section 13(1)(ib) of the Act requires desertion for a continuous period of not less than two years immediately preceding the presentation of the divorce petition. In the present case, the respondent Shantibai has admitted that she is living separately with her parents since 1995-1996 (since 9-10 years prior to giving the affidavit before the trial Court, on 26/7/2005). The statement of the appellant also indicates that the respondent is living separately with her parents since 1995-96. The appellant has stated that he had no marital relation

with the respondent since last 10-11 years. He has stated that for that reason he is having "dry life" for last several years. The aforesaid position is also reflected from the statements of the other witnesses. The respondent's plea that she is living separately on account of the second marriage of the appellant cannot be accepted because the respondent has failed to produce any reliable evidence establishing the second marriage of appellant with Radhabai. The reliance on the affidavit (Ex.D.15) given by Radhabai does not establish second marriage since she has only stated that she is living in the appellant's protection for certain reasons, but she has not stated that she is living as wife of the appellant. Though the respondent has stated that she is ready to live with the appellant, but the father of the respondent has categorically stated that it is not possible for the respondent to live with the appellant. The respondent has failed to establish any reasonable cause for living separately for last about 15 years. Thus, it is clear that the respondent has deserted the appellant and ground for divorce under Section 13(1)(ib) of the Act is made out."

16. Recently the Division Bench of this Court in Jabalpur in the case of Vibha Shukla Vs. Kailash Dwivedi in First Appeal No.547/2019 decided on 03.02.2022 the decree of divorce has been granted as the husband and wife is living separately for last 17 years and there was no cohabitation between them.

17. In view of the above pronouncement of law, the fact that there is no cohabitation between the present appellant/husband and respondent/wife since last 14 years, the same would amount to desertion and irretrievable breakdown of marriage between the parties.

18. Accordingly, the judgment and decree dated 12.10.2012 passed by the Principal Judge, Family Court, Indore in H.M.P. Case No. 800/2010 is hereby set aside. Consequently, the First Appeal is allowed. The decree for divorce as prayed by the appellant/husband is granted and their marriage stands dissolved.

19. Decree be drawn accordingly and record of the Court below be sent back.

No order as to cost.

(S. A. DHARMADHIKARI)  
JUDGE

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